

PLJ 2017 Lahore 96
[Multan Bench Multan]

Present: MASUD ABID NAQVI, J.

AYAT ULLAH--Petitioner

versus

APPELLATE AUTHORITY OF PUNJAB LOCAL GOVERNMENT
ELECTION, TEHSIL JAHANIAN, DISTRICT KHANEWAL
and 3 others--Respondents

W.P. No. 15419 of 2016, decided on 2.11.2016.

Punjab Local Government Act, 2013 (XVIII of 2013)--

----S. 43(1)--Proposer and seconder were not members of electoral college--
Nomination papers for seat of kissan councilor were rejected--Validity--A
member of an electoral college may propose or second the name of any
person who is a registered voter of any electoral area forming part of local
government to be a candidate for elections--Petitioner had opportunity to
cure defect but he had failed to do so within specified time--Nomination
papers were rightly rejected--Petition was
dismissed. [P. 97] A

Rana Muhammad Asif Saeed, Advocate for Petitioner.

Ch. Dawood Ahmad Wains, Advocate for Respondents.

Mr. Naeem Khan, Advocate/Legal Advisor Election Commission of
Pakistan.

Date of hearing: 2.11.2016.

ORDER

Briefly stated facts of this writ petition are that petitioner submitted his nomination papers before Respondent No. 2 for the seat of Kissan Councilor, Union Council No. 120, Tehsil Jahanian District Khanewal which were rejected by the Returning Officer vide order dated 18.10.2016. The petitioner filed an appeal against the abovementioned order before the Appellate Authority Jahanian which was also dismissed vide impugned order dated 21.10.2016 and the nomination papers of the petitioner were rejected. Through this petition, the petitioner has challenged the validity of the orders passed by the learned Returning Officer and the learned Appellate Authority, Jahanian.

2. Learned counsel for the petitioner submits that petitioner should have been given the opportunity to substitute his proposer and seconder to meet the requirement of Section 43, Chapter v. of Punjab Local Government Act, 2013, however, he was not given the opportunity as envisaged in Section 14(vii) and (ix) of Punjab Local Government Act, 2013, therefore, the impugned orders are not sustainable in the eye of law and liable to be set aside.

3. I have heard the arguments of learned counsel for the parties and perused the available record as well as have minutely gone through the impugned order.

4. Perusal of record reveals that the proposer and seconder of petitioner were not members of Electoral College. Section 43(1), Chapter-V of Punjab Local Government Act, 2013, clearly stipulates that a member of an electoral college may propose or second the name of any person who is a registered voter of any electoral area forming part of the respective local government to be a candidate for the elections under this chapter. The petitioner had the opportunity to cure the defect but he failed to do so within the specified time. His nomination papers were rightly rejected. No infirmity legal and factual has been pointed out by the petitioner in the impugned orders dated 18.10.2016 and 21.10.2016 requiring interference by this Court which are accordingly upheld.

5. In view of the foregoing discussion, this writ petition is dismissed.

(R.A.) Petition dismissed